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INCOME TAX ACT [*CHAPTER 23:06*]

Declaration of holder of special mining lease as approved holder for purposes of exemption from certain taxes

THE Minister of Finance and Economic Development, in terms of section 36 of the Income Tax Act [*Chapter 23:06*], hereby declares Economic Great Dyke Investment (Private) Limited company to be an approved holder of a special mining lease with effect from 1st January, 2020, for purposes of sections 26, 30, 31 and 32 of the Act in respect of non-resident tax chargeable on—

(a) dividends payable to any non-resident shareholders of Great Dyke Investment (Private) Limited in connection with special mining lease operations of Great Dyke Investment (Private) Limited.

(b) fees payable to non-resident person for services performed by them in connection with special mining lease operations, but not remittances payable to the parent company in respect of management services.

(c) remittances effected in respect of allocable expenditure in connection with special mining lease operations, but not remittance payable to the parent company in respect of management services.

(d) royalties to any non-resident persons in connection with special mining lease operations.

HON. MTHULI NCUBE,
27-1-2021. Minister of Finance and Economic Development.